Harris County District Court

Cause No. 2024-CV-0021

Jodi Campos, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	5-29-24
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant, appearing subject to its answer, respectfully files this Original Answer to Plaintiff's Original Petition and would show the Court as follows.

I. General Denial

Pursuant to Rule 92 of the Texas Rules of Civil Procedure, Defendant genearlly denies each and every, all and singular, the material allegations contained in Plaintiff's Original Petition, and demands strict proof thereof by a preponderance of the evidence as required by the Constitution and laws of the State of Texas.

II. Affirmative Defenses

First, Plaintiff's own negligence proximately cauesd or contribuetd to the collision. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by Plaintiff's percentage of responsibility, and bars recovery if that percentage exceeds fifty percent.

Second, Defendant invokes the proportionate responsibility provisions of Chapter 33, including the right to designate responsible thrid parties and to have damages apportioned among all persons whose conduct caused or contributed to the harm alleged.

Third, Defendant asserts that Plaintiff failed to mitigate damages, including by failing to follow reasonable medical advice and by incurring medical expenses that were not reasonable or necessary, and any recovery must be reduced accordingly.